

MERIDIAN LIFE ASSURANCE LIMITED

VitalCare Critical Illness Plan

Standalone Critical Illness Policy

Policy Provisions

Product Form No.: MLA-VC-2007

These Provisions form part of the Policy Contract. Please read them together with the Policy Schedule, the Application and any Endorsements.

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PREAMBLE

In consideration of the payment of the first premium and each subsequent premium as they fall due, Meridian Life Assurance Limited (the “Company”) will provide the benefits described in these Provisions, subject to the terms, conditions, limitations and exclusions set out herein and in the Policy Schedule. This Policy is a standalone critical illness plan and provides a benefit that is payable in addition to, and independently of, any death benefit under any other policy issued by the Company. Where there is any conflict between these Provisions and the Policy Schedule, the Policy Schedule shall prevail.

PART A – DEFINITIONS

In these Provisions, unless the context otherwise requires, the following words and expressions shall have the meanings assigned to them below. Words importing the singular include the plural and vice versa.

“**Policy**” means this contract of insurance between the Policy Owner and the Company, comprising these Provisions, the Policy Schedule, the Application and any Endorsements.

“**Company**” means Meridian Life Assurance Limited, its successors and assigns.

“**Insured Sum**” means the amount shown as the Insured Sum for this Plan in the Policy Schedule, as may be increased in accordance with Part E.

“**Life Assured**” means the person named as the Life Assured in the Policy Schedule and on whose life this Policy is effected.

“**Policy Owner**” means the person named as the Policy Owner in the Policy Schedule who is entitled to exercise all rights, privileges and options under the Policy.

“**Issue Date**” means the date on which this Policy is issued, as shown in the Policy Schedule, being the date from which cover under these Provisions commences.

“**Policy Anniversary**” means each anniversary of the Issue Date.

“**Critical Illness**” means any one of the medical conditions, illnesses, diseases or surgical procedures listed in Schedule 1 (Major Critical Illnesses) or Schedule 2 (Early-Stage Critical Illnesses), each as defined in these Provisions, first occurring after the Issue Date and satisfying the applicable definition, the Waiting Period and the Survival Period.

“**Major Critical Illness**” means any one of the 40 conditions listed in Schedule 1, in each case satisfying the definition set out in Schedule 3 where applicable.

“**Early-Stage Critical Illness**” means any one of the 25 conditions listed in Schedule 2, being conditions of a less severe nature or an earlier stage of a Major Critical Illness.

“**Major Illness Group**” means one of the five (5) groups into which the Major Critical Illnesses are classified for the purpose of the Multiple Claims provision in Clause B4, as set out at the head of Schedule 1.

“**Diagnosis**” means the definitive diagnosis of a Critical Illness made by a Registered Medical Practitioner, Specialist or, where required by the relevant definition, a Consultant, supported by clinical, radiological, histological, histopathological and laboratory evidence acceptable to the Company and its Chief Medical Officer.

“**Waiting Period**” means the period described in Clause C1 during which a Diagnosis (or the signs or symptoms leading to it) does not give rise to a claim.

“**Survival Period**” means the period described in Clause C2 for which the Life Assured must survive following Diagnosis.

“**Registered Medical Practitioner**” means a person qualified and licensed to practise western medicine and duly registered with the relevant medical authority, other than the Policy Owner, the Life Assured, an insurance intermediary, a business partner or an immediate family member of the Life Assured.

PART B – THE CRITICAL ILLNESS BENEFIT

B1 Major Critical Illness Benefit Subject to these Provisions, upon the Diagnosis of the Life Assured as suffering from a Major Critical Illness which first occurs after the Issue Date, which satisfies the Waiting Period under Clause C1 and in respect of which the Life Assured survives the Survival Period under Clause C2, the Company will pay to the Policy Owner a lump sum equal to one hundred per cent (100%) of the Insured Sum then applicable, less any Early-Stage Critical Illness Benefit previously paid in respect of the same Major Illness Group as provided in Clause B3.

B2 Nature of the Benefit The benefit under this Plan is an **additional** benefit. It is payable in addition to, and does not reduce, any death benefit or other benefit payable under any basic plan or any other policy. This Plan does not itself provide a death benefit, save for the return of any unearned premium on death where the death is not the result of a Critical Illness for which a claim is admissible.

B3 Early-Stage Critical Illness Benefit Upon the Diagnosis of the Life Assured as suffering from an Early-Stage Critical Illness listed in Schedule 2, the Company will pay twenty-five per cent (25%) of the Insured Sum, subject to a maximum of Fifty Thousand dollars (\$50,000) for each Early-Stage Critical Illness and an aggregate maximum of one hundred per cent (100%) of the Insured Sum for all Early-Stage Critical Illness Benefits combined. Each Early-Stage Critical Illness Benefit paid in respect of a Major Illness Group shall reduce the Major Critical Illness Benefit subsequently payable in respect of that same Group by an equal amount.

B4 Multiple Claims Benefit (Multipay) This Plan provides for **multiple claims**. The 40 Major Critical Illnesses are divided into five (5) Major Illness Groups. Following the admission and payment of a claim for a Major Critical Illness in one Group, cover for the remaining Groups continues automatically, without further underwriting and at no additional premium, and a further one hundred per cent (100%) of the Insured Sum is payable on the Diagnosis of a Major Critical Illness belonging to a **different** Group, provided that (a) the subsequent Diagnosis occurs at least twelve (12) months after the date of Diagnosis of the immediately preceding Major Critical Illness (the “Waiting Interval”), and (b) where the subsequent condition is cancer, it is not a recurrence, metastasis or continuation of a cancer for which a claim has previously been admitted. The aggregate of all Major Critical Illness Benefits payable under this Clause shall not exceed three hundred per cent (300%) of the Insured Sum, upon which this Plan shall terminate.

B5 Survival and Termination Cover in respect of a Major Illness Group ceases once a Major Critical Illness Benefit has been paid for that Group. This Plan terminates on the earliest of: (a) the aggregate benefit reaching 300% of the Insured Sum; (b) the death of the Life Assured; (c) the Policy Anniversary on which the Life Assured attains age 75; or (d) the lapse or surrender of the Policy.

PART C – WAITING PERIOD AND SURVIVAL PERIOD

C1 Waiting Period No benefit is payable in respect of any Critical Illness where the Diagnosis is made, or where the signs, symptoms, investigations or medical consultation first leading to the Diagnosis occur, within **ninety (90) days** of the Issue Date or of the date of any reinstatement, whichever is later. This Waiting Period applies to Major Cancer, Heart Attack of Specified Severity, and all Early-Stage Critical Illnesses. For all other Critical Illnesses no Waiting Period applies. Any Diagnosis first arising during the Waiting Period is excluded even if the condition persists beyond it.

C2 Survival Period A benefit is payable only if the Life Assured survives for a period of at least **fourteen (14) days** from the date of Diagnosis of the Critical Illness (the “Survival Period”), during which period the Life Assured must not have suffered brain death or be maintained on life support solely by artificial means. If the Life Assured dies within the Survival Period, no Critical Illness Benefit is payable under these Provisions.

PART D – PREMIUMS

D1 Level Premiums Premiums for this Plan are payable on a **level** basis. The premium rate is determined at the Issue Date by reference to the age, gender and smoking status of the Life Assured and remains **guaranteed level and unchanged** throughout the premium payment term shown in the Policy Schedule, notwithstanding any increase in the age of the Life Assured or any change in health. Premiums are payable until the Policy Anniversary on which the Life Assured attains age 75, or until earlier termination.

D2 Grace Period A grace period of thirty (30) days from each premium due date is allowed for the payment of each premium after the first. Cover continues in force during the grace period. If any premium remains unpaid at the end of the grace period, the Policy shall lapse with effect from the premium due date.

PART E – AUTOMATIC INCREASE OF THE INSURED SUM (VITALBOOSTER)

E1 Guaranteed Annual Increase On each of the first ten (10) Policy Anniversaries, the Insured Sum shall **automatically increase by five per cent (5%) of the original Insured Sum**, without evidence of health and without further underwriting (the “VitalBooster”). The increases are cumulative and cease after the tenth Policy Anniversary, by which time the Insured Sum will have increased by fifty per cent (50%) of the original Insured Sum. Premiums do not increase as a result of the VitalBooster.

E2 Effect of a Claim on Increases No further automatic increase shall take effect after the admission of any Major Critical Illness claim. The Insured Sum applicable to any claim is the Insured Sum in force on the date of Diagnosis.

PART F – GENERAL EXCLUSIONS

No benefit shall be payable under these Provisions in respect of any Critical Illness which is caused, directly or indirectly, wholly or partly, by or resulting from any of the following:

- (a) any Pre-Existing Condition, being any condition, illness or injury for which the Life Assured received or was recommended to receive medical advice, treatment, consultation or medication, or the signs or symptoms of which existed, prior to the Issue Date or the date of last reinstatement, and which was not disclosed to and accepted by the Company;
- (b) any Critical Illness diagnosed within the Waiting Period as described in Clause C1;
- (c) self-inflicted injury or attempted suicide, while sane or insane;
- (d) the presence of any Human Immunodeficiency Virus (HIV) and/or any HIV-related illness including AIDS, except as expressly covered under Schedule 1;
- (e) the abuse of alcohol, drugs or any substance not taken in accordance with the directions of a Registered Medical Practitioner;
- (f) any congenital anomaly or any condition arising out of a congenital defect which manifested or was diagnosed before the Life Assured attained age seventeen (17);
- (g) war, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, riot, or the Life Assured taking part in any unlawful act;
- (h) travel in or descent from any aircraft other than as a fare-paying passenger in a licensed commercial aircraft; and
- (i) nuclear fission, nuclear fusion or radioactive contamination.

PART G – CLAIMS

G1 Notice of Claim Written notice of any claim must be given to the Company within ninety (90) days of the date of Diagnosis. Failure to give notice within the time prescribed shall not invalidate a claim if it is shown that it was not reasonably possible to give such notice and that notice was given as soon as was reasonably possible.

G2 Proof of Claim The claimant shall furnish, at his own expense, all such certificates, reports, medical records, histological and laboratory evidence, and information as the Company may reasonably require to establish the claim and the applicable definition in Schedule 3. The Life Assured shall submit to medical examination by a Registered Medical Practitioner appointed by the Company as often as the Company may reasonably require.

G3 Payment of the Benefit On admission of a claim the Company will pay the benefit to the Policy Owner or, where the Life Assured has died after the Survival Period but before payment, to the Policy Owner or his estate.

PART H – GENERAL PROVISIONS

H1 Free-Look Period The Policy Owner may cancel this Policy by written notice received by the Company within twenty-one (21) days after the Policy Owner receives the Policy document, in which event the Company will refund the premium paid less any medical or other expenses incurred by the Company, provided no claim has arisen.

H2 Incontestability Except for fraud or non-payment of premium, the Company shall not contest the validity of this Policy after it has been in force during the lifetime of the Life Assured for two (2) years from the Issue Date or the date

of last reinstatement.

H3 Age and Gender If the age or gender of the Life Assured has been misstated, the benefit payable shall be such as the premium paid would have purchased at the correct age and gender, and the Company may adjust premiums accordingly. If, at the correct age, the Life Assured would not have been eligible for cover, no benefit shall be payable and the Company's liability shall be limited to a refund of premiums paid without interest.

H4 Reinstatement A lapsed Policy may be reinstated within twelve (12) months of lapse upon written application, production of evidence of insurability satisfactory to the Company, and payment of all overdue premiums with interest. A fresh Waiting Period shall apply from the date of reinstatement.

H5 Governing Law These Provisions shall be governed by and construed in accordance with the laws of the jurisdiction stated in the Policy Schedule, and the parties submit to the exclusive jurisdiction of its courts.

SCHEDULE 1 – MAJOR CRITICAL ILLNESSES

For the purpose of the Multiple Claims Benefit (Clause B4), the 40 Major Critical Illnesses are classified into five (5) Major Illness Groups (Group 1 – Cancers; Group 2 – Cardiovascular; Group 3 – Nervous System; Group 4 – Major Organs & Systems; Group 5 – Other Major Illnesses). The full list of covered Major Critical Illnesses is set out below.

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| 1. Major Cancer | 21. Fulminant Viral Hepatitis |
| 2. Heart Attack of Specified Severity | 22. Benign Brain Tumour |
| 3. Stroke with Permanent Neurological Deficit | 23. Bacterial Meningitis |
| 4. Coronary Artery By-pass Surgery | 24. Viral Encephalitis |
| 5. Kidney Failure | 25. Primary Pulmonary Hypertension |
| 6. Major Organ / Bone Marrow Transplantation | 26. Systemic Lupus Erythematosus with Lupus Nephritis |
| 7. Multiple Sclerosis | 27. Major Burns |
| 8. Muscular Dystrophy | 28. Heart Valve Surgery |
| 9. Motor Neurone Disease | 29. Surgery to Aorta |
| 10. Parkinson's Disease | 30. Cardiomyopathy |
| 11. Alzheimer's Disease / Severe Dementia | 31. Occupationally Acquired HIV / HIV Due to Blood Transfusion |
| 12. Coma | 32. Terminal Illness |
| 13. Deafness (Irreversible Loss of Hearing) | 33. Progressive Systemic Sclerosis (Scleroderma) |
| 14. Loss of Speech | 34. Apallic Syndrome (Persistent Vegetative State) |
| 15. Blindness (Irreversible Loss of Sight) | 35. Loss of Independent Existence |
| 16. Major Head Trauma | 36. Severe Rheumatoid Arthritis |
| 17. Paralysis (Irreversible Loss of Use of Limbs) | 37. Necrotising Fasciitis |
| 18. Aplastic Anaemia | 38. Elephantiasis |
| 19. End Stage Liver Failure | 39. Poliomyelitis |
| 20. End Stage Lung Disease | 40. Severe Myasthenia Gravis |

The precise medical definition of each Major Critical Illness, including the severity thresholds, diagnostic criteria and any exclusions specific to that condition, forms part of these Provisions. Selected definitions are reproduced in Schedule 3. A condition which does not meet its definition in full is not covered, notwithstanding that it may be described by the same or a similar name.

SCHEDULE 2 – EARLY-STAGE CRITICAL ILLNESSES

In addition to the Major Critical Illnesses in Schedule 1, this Plan covers the following 25 Early-Stage Critical Illnesses, each payable at twenty-five per cent (25%) of the Insured Sum subject to the limits in Clause B3.

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| 1. Carcinoma-in-situ of Specified Organs | 14. Cerebral Shunt Insertion |
| 2. Early Stage Malignancy of Specified Organs | 15. Early Stage Alzheimer's Disease |
| 3. Ductal Carcinoma-in-situ of the Breast | 16. Moderately Severe Parkinson's Disease |
| 4. Early Prostate Cancer | 17. Small Bowel Transplant |
| 5. Early Thyroid Cancer | 18. Surgical Removal of One Kidney |
| 6. Early Bladder Cancer | 19. Liver Surgery |
| 7. Early Chronic Lymphocytic Leukaemia | 20. Less Severe Kidney Disease |
| 8. Non-invasive Papillary Cancer of Bladder | 21. Biliary Tract Reconstruction Surgery |
| 9. Angioplasty & Other Invasive Treatment for Coronary Artery | 22. Endovascular Treatment of Aortic Disease |
| 10. Minimally Invasive Heart Valve Surgery | 23. Moderately Severe Bacterial Meningitis |
| 11. Insertion of a Vena-Cava Filter | 24. Facial Reconstructive Surgery for Burns to Head |
| 12. Pericardectomy | 25. Severe Osteoporosis with Fractures |
| 13. Cerebral Aneurysm Requiring Surgery | |

SCHEDULE 3 – DEFINITIONS OF SELECTED CRITICAL ILLNESSES

The following definitions are reproduced by way of illustration. Similar detailed definitions apply to every condition listed in Schedule 1 and Schedule 2.

Major Cancer. A malignant tumour characterised by the uncontrolled growth and spread of malignant cells with invasion and destruction of normal tissue, and for which definite histological confirmation of malignancy is obtained. The term Major Cancer **excludes:** (a) all tumours which are histologically classified as carcinoma-in-situ, cervical dysplasia CIN-1, CIN-2 and CIN-3; (b) any non-melanoma skin carcinoma unless there is evidence of metastases; (c) malignant melanoma of less than 1.0mm Breslow thickness and not ulcerated; (d) all tumours of the prostate histologically described as TNM Classification T1a or T1b or Gleason score 6 or below; (e) papillary micro-carcinoma of the thyroid less than 1cm in diameter; and (f) all tumours in the presence of HIV infection.

Heart Attack of Specified Severity. Death of heart muscle due to obstruction of blood flow, evidenced by the simultaneous occurrence of: (a) a history of typical chest pain; (b) new characteristic electrocardiographic changes; and (c) elevation of cardiac biomarkers (Troponin T or I, or CK-MB) to at least three times the upper limit of the laboratory reference range. Angina, and a rise in cardiac biomarkers following any intra-arterial cardiac procedure, are excluded.

Stroke with Permanent Neurological Deficit. A cerebrovascular incident including infarction of brain tissue, intracranial or subarachnoid haemorrhage, or embolisation from an extracranial source, producing permanent neurological deficit that is assessed at least six (6) weeks after the event. Transient ischaemic attacks, vascular disease affecting the eye or optic nerve, and lacunar infarcts without neurological deficit are excluded.

[The remaining condition definitions are omitted from this case-study extract.]